

Chief Justice's Court

Case :- WRIT - C No. - 61372 of 2016

Petitioner :- Mukesh Kumar And 3 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ranjit Saxena

Counsel for Respondent :- C.S.C.,Awadhesh Kumar
Saxena,Mahboob Ahmad

Hon'ble Dilip B. Bhosale,Chief Justice

Hon'ble Suneet Kumar,J.

At the request of learned counsel for the respondents, S.O. to

4.1.2017, as fresh matter.

Order Date :- 2.1.2017

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(Dilip B Bhosale, CJ)

(Suneet Kumar, J)

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Heard Sri Ranjit Saxena, learned counsel for the petitioners, Sri Mahboob Ahmad, learned counsel for respondent No. 2 and Sri Abhijit Saxena, learned counsel holding for Sri A.K. Saxena, learned counsel for respondent No.3.

The petitioners, in the instant writ petition, seek the following reliefs:

"(i) issue a writ, order or direction in the nature of certiorari quashing the Recovery dated nil issued by the Executive Engineer, Electricity Distribution Division Ist, U.P. Power Corporation Ltd. Muzaffarnagar (Annexure No.20 of the writ petition) issued against the Directors of the M/s Kumar Casting Pvt. Ltd.

(ii) issue a writ, order or direction in the nature of certiorari quashing the proceedings of recovery under Clause-4.3 (f) (v) of the Electricity Supply Code, 2005 against the defaulting directors of the company and thus the provisions of Clause-4.3 (f) (v) of the Electricity Supply Code, 2005 are ultravires and thus may be declared to be unconstitutional and the consumer has been defined in Section-2 (15) of the Electricity Act, 2003 and the Subordinate Registration is Ultravires."

It appears that writ petitions bearing Writ-C No. 39095 of 2015 and Writ-C No. 8370 of 2016 are pending for final disposal wherein similar challenge is raised. In short, the question raised therein is whether the impugned recovery notices can be enforced against the Directors. Counsel for respondent No.2-Corporation, on instructions, submits that the Corporation, in

order to recover the dues shall proceed against the assets of the Company, and if for any reason, they cannot recover the due amount, it may be kept open for them to proceed against the Directors subject to outcome of the aforementioned writ petitions (Writ-C No. 39095 of 2015 and Writ-C No. 8370 of 2016). Counsel for the petitioners submits that the Directors have no objection for the Corporation proceeding against the assets of Company to recover the due amount. He submits that the petitioners contentions may be kept open in the event the respondent No.2-Corporation, after disposal of the aforementioned writ petitions, decide to proceed against the Directors to recover the due amounts. In view of the submissions made by learned counsel for the parties, we are satisfied that the following order shall meet the ends of justice:

It is open to respondent No.2-Corporation to take all steps to recover the due amount from the Company, and if for any reason, the due amount is not recovered even after the sale of assets of the Company, it would be open to respondent No.2-Corporation to proceed against the Directors after disposal and subject to outcome of the writ petitions bearing Writ-C No. 39095 of 2015 and Writ-C No. 8370 of 2016 pending in this Court. The petitioners contentions, insofar as the question raised in the aforementioned writ petitions and also the challenge raised in the instant writ petitions to Clause 4.3 (f) (v) of the Electricity Supply Code, 2005, are kept open. With these observations, petition is disposed of.

Order Date :- 4.1.2017
VMA

(Suneet Kumar, J) (Dilip B Bhosale, CJ)